

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gary Roosa	Team: Team # 3	CCRB Case #: 200609399	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 07/11/2006 8:42 PM	Location of Incident: § 87(2)(b) between § 87(2)(b) and § 87(2)(b)		18 Mo. SOL 1/11/2008 Precinct: 28
Date/Time CV Reported Tue, 07/18/2006 3:51 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/18/2006 3:51 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christopher Heredia	25821	938656	PSA 5

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Kuehn	07450	938796	PSA 5
2. Officers			PSA 5

Officer(s)	Allegation	Investigator Recommendation
A . POM Christopher Heredia	Abuse: PO Christopher Heredia frisked § 87(2)(b)	A . Exonerated
B . POM Christopher Heredia	Abuse: PO Christopher Heredia searched § 87(2)(b)	B . Exonerated

Synopsis

On July 18, 2006, § 87(2)(b) filed this complaint with the CCRB via telephone. On July 11, 2006 at approximately 8:42 PM, PO Christopher Heredia and PO Christopher Kuehn observed § 87(2)(b) riding his bicycle on a sidewalk within the § 87(2)(b) Housing Development in Manhattan. The officers, who were also on bicycles, followed § 87(2)(b) and stopped him on the street in front of § 87(2)(b). § 87(2)(b) got off his bicycle and PO Kuehn requested § 87(2)(b)'s identification, which was provided. While PO Kuehn conducted a warrant check over the radio, PO Heredia frisked § 87(2)(b) (Allegation A). PO Heredia then asked § 87(2)(b) if he could search his backpack and § 87(2)(b) consented. PO Heredia searched § 87(2)(b)'s backpack and found telephone jacks, wires, and tools (Allegation B). PO Kuehn issued § 87(2)(b) one summons for riding his bicycle on the sidewalk and the officers left the location.

This case was initially assigned to Inv. Eduardo Sebeyan on July 21, 2006, but was reassigned to the undersigned investigator on August 23, 2006. On September 8, 2006, the mediation and investigation processes were explained to § 87(2)(b) who chose to resolve his complaint through mediation. However, PO Heredia subsequently rejected to participate in the mediation process and the case was returned investigation (encl. 8A-I).

§ 87(2)(g)

§ 87(2)(b) is therefore recommended that **allegations A and B** be **exonerated**.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) filed this complaint with the CCRB via telephone on July 18, 2006 (encl. 3A-B). § 87(2)(b) was contacted on August 28, 2006 and he provided a brief telephone statement (encl. 3C). On September 8, 2006, § 87(2)(b) provided a written statement (encl. 3D) and he was subsequently interviewed at the CCRB (encl. 3E-V). On October 18, 2006, § 87(2)(b) viewed officer photographs at the CCRB (encl. 3W-II). § 87(2)(b) was contacted on March 29, 2007 and he provided another brief telephone statement (encl. 3JJ). § 87(2)(g)

§ 87(2)(b) is a § 87(2)(b) Hispanic male § 87(2)(b). § 87(2)(b)

On July 11, 2006 at approximately 8:42 PM, § 87(2)(b) rode his bicycle along a pathway through the § 87(2)(b) Housing Development from § 87(2)(b) to § 87(2)(b) in Manhattan. He had a black backpack on his back, which contained tools such as pliers and telephone jacks. When § 87(2)(b) reached § 87(2)(b) between § 87(2)(b) and § 87(2)(b) he turned left onto the street and headed westbound. § 87(2)(b) heard, "Hey, hey. Hold it right there." § 87(2)(b) stopped, turned around and saw two uniformed officers on bicycles, PO1 and PO2, and approximately four uniformed officers on foot. PO1, later identified through investigation as PO Christopher Heredia, was described as a male with a brown complexion and a heavy build, 5'8", and in his late 20s. PO2, later identified through investigation as PO Christopher Kuehn, was described as a white or Hispanic male with a slim build, 5'5", and in his mid-20s. § 87(2)(b) immediately got off his bicycle and asked what the problem was. PO Heredia told § 87(2)(b) that he was on police housing grounds and that he could be searched. The officers told § 87(2)(b) to put his bag down and he placed it on top of a parked vehicle nearby. PO Heredia asked § 87(2)(b) if he had a knife or a gun and § 87(2)(b) responded that he did not. PO Kuehn asked for identification and § 87(2)(b) provided his name and driver's license number verbally because he was afraid to reach into his pockets. PO Kuehn requested a piece of ID and § 87(2)(b) provided his § 87(2)(b) identification card. PO Kuehn radioed the precinct to check if § 87(2)(b) had any outstanding warrants.

Without being asked by either officer, § 87(2)(b) took his keys and his wallet out of his pocket and placed them onto a parked vehicle. § 87(2)(b)'s pockets were empty except for a napkin. PO Heredia told § 87(2)(b) that he was going to have to search him because he was riding on sidewalks in the housing grounds. PO Heredia had § 87(2)(b) spread his legs and put his hands above his head. PO Heredia then frisked § 87(2)(b) by feeling around his private area and the outside of his pants. At no point did PO Heredia put his hands inside any of § 87(2)(b)'s pockets. PO Heredia asked § 87(2)(b) if he could search his black backpack and § 87(2)(b) stated, "Officer, you're an authority. You should know what to do right. I cannot tell you how to perform your job." § 87(2)(b) said this because he was concerned about his security and afraid that he would be charged with disorderly conduct if he did not allow PO Heredia to search his bag. PO Heredia searched each compartment of § 87(2)(b)'s backpack and found wires and telephone jacks that § 87(2)(b) uses for his job. PO Kuehn issued § 87(2)(b) a summons for § 87(2)(a) 160.50 and then all of the officers left the location. The issuing officer listed on the summons was PO Kuehn, tax ID #938796. § 87(2)(b) was stopped for approximately thirty minutes. § 87(2)(b) observed a group of people watching the incident from outside a store on § 87(2)(b) but he could not identify any of these individuals. § 87(2)(b) was compliant and respectful toward the officers during the incident and he did not curse at any point. On March 29, 2007, the investigator contacted § 87(2)(b) with a series of follow-up questions. When asked specifically about a cell phone, § 87(2)(b) stated that he did not own a cell phone at the time of the incident and he did not have a cell phone in his possession.

Results of Investigation

Summonses

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)

Attempts to Locate Witnesses

§ 87(2)(b) stated that a group of unknown individuals witnessed the incident. § 87(2)(g)
§ 87(2)(b)

Identification of Officers Interviewed

The SPRINT report indicated that on July 11, 2006 at 8:40 PM, Housing Bike #3 conducted a warrant check on § 87(2)(b) at § 87(2)(b) in Manhattan (encl. 5A). The warrant check was negative. The PSA 5 roll call from July 11, 2006 indicated that PO Heredia was assigned to Impact Bike #1, PO Hernandez was assigned to Impact Bike #2, and PO Kuehn was assigned to Impact Bike #3 (encl. 5B). § 87(2)(b) identified PO Kuehn from the summons that he received. In addition, § 87(2)(b) viewed eleven photographs of officers that were assigned to Impact patrol within the § 87(2)(b) at the time of the incident. § 87(2)(b) confirmed that PO Kuehn and PO Heredia were the officers that stopped him but he could not confirm whether any of the other officers included in the photo viewing were present at the time of the incident.

Officer Christopher Heredia

Memo Book

PO Heredia did not have any relevant memo book entries for this incident (encl. 4A-B). However, PO Heredia did note that he stopped other individuals for riding their bicycles on the sidewalk at 7:40 PM and 8:22 PM on the same night.

CCRB Testimony

PO Heredia was interviewed at the CCRB on March 22, 2007 (encl. 4C-D). He is a § 87(2)(b)-old Hispanic male, § 87(2)(b) with black hair and brown eyes. On July 11, 2006, PO Heredia worked 5:30 PM to 2:05 AM. At the time of the incident, he was assigned to Impact Bike Patrol in PSA 5 and he was in uniform. PO Heredia has since been reassigned to PSA 6.

On July 11, 2006 at approximately 8:42 PM, PO Heredia and PO Kuehn were on their bicycles inside the § 87(2)(b) Housing Development in Manhattan. The officers observed § 87(2)(b) riding his bicycle very fast on the sidewalk inside the housing grounds in the vicinity of § 87(2)(b). The officers followed § 87(2)(b) and caught up to him at § 87(2)(b) between § 87(2)(b) and § 87(2)(b). At this point, § 87(2)(b) exited the housing grounds and rode out onto the street. The officers rode up behind § 87(2)(b) and both officers told him to stop his bike and he complied. PO Heredia noticed that § 87(2)(b) had a backpack on his back. The officers asked for § 87(2)(b)'s identification and he provided it without incident. § 87(2)(b) got off his bike and PO Heredia noticed a bulge protruding from one of his front pants pockets. § 87(2)(b) became irate and began talking in a loud and boisterous manner. § 87(2)(b) stated that the housing development walkways were not sidewalks and he should be able to ride his bike there. PO Heredia calmly tried to explain the housing rules but § 87(2)(b) would not accept this. § 87(2)(b) stated that he should not have been receiving a summons. At no point did § 87(2)(b) interfere with the officers' duties. § 87(2)(b) was compliant but he was "a little argumentative."

When asked if he ever saw § 87(2)(b) as a threat to his safety, PO Heredia stated, "When he was becoming irate, yes, I did." At this point, PO Heredia decided to conduct a frisk. PO Heredia first asked § 87(2)(b) what the bulge in his pocket was and § 87(2)(b) replied that it was a cell phone. PO Heredia grabbed the bulge from outside § 87(2)(b)'s pants. The object felt hard and plastic like a cell phone and so PO Heredia did not reach into § 87(2)(b)'s pocket. At this point in time, PO Kuehn was conducting a warrant check. § 87(2)(b) told PO Heredia that he could look in his backpack because he had nothing on him at all. At no point did PO Heredia ask to look into the backpack. After receiving consent, PO Heredia searched the bag and found telephone lines, jacks, and tools. The warrant check was negative and PO Kuehn issued § 87(2)(b) one summons for § 87(2)(a) 160.50. § 87(2)(b) continued to be argumentative and he stated that he would call his lawyer. § 87(2)(b) then crossed the street and went to a pay phone to call his lawyer. The officers left the location.

PO Heredia could not recall if any other officers responded at any point during the incident. PO Heredia stated that the § 87(2)(b) Housing Development has a high incidence of crime, including guns, and the officers focus their attention on this development.

Officer Christopher Kuehn

Memo Book

PO Kuehn had the following relevant memo book entries for this incident (encl. 4E-F).

On July 11, 2006 at 8:42 PM, PO Kuehn stopped one male in front of § 87(2)(b) for riding a bicycle on the sidewalk. The individual was § 87(2)(b) of § 87(2)(b).

CCRB Testimony

PO Kuehn was interviewed at the CCRB on March 1, 2007 (encl. 4G-H). He is a § 87(2)(b)-old white male, § 87(2)(b) with black hair and hazel eyes. On July 11, 2006, PO Kuehn worked 5:55 PM to 2:05 AM. At the time of the incident, he was assigned to Impact Bike Patrol in PSA 5 and he was in uniform. PO Kuehn has since been reassigned to Housing Borough Manhattan.

§ 87(2)(g)
After § 87(2)(b) was stopped, PO Kuehn asked for § 87(2)(b)'s identification. § 87(2)(b) provided his § 87(2)(b) identification without incident but he was upset. § 87(2)(b) began yelling and screaming saying, "This isn't right. I'm gonna call my lawyer once I'm done with this. Give me the summons." PO Kuehn tried to calm § 87(2)(b) down by telling him, "It's not a big deal. It's just a summons." PO Kuehn called Central and asked an officer to check § 87(2)(b)'s name and date of birth. At this point, PO Heredia noticed a bulge in § 87(2)(b)'s pants pocket. PO Kuehn then noticed this bulge too. When asked to describe the bulge, PO Kuehn stated, "It was protruding out of his pocket." PO Heredia frisked § 87(2)(b) to make sure the bulge in § 87(2)(b)'s pants was not a weapon. PO Heredia felt § 87(2)(b)'s pocket area and determined the bulge to be a cell phone. PO

Heredia frisked § 87(2)(b) for the officers' safety. § 87(2)(b) was carrying a bag and PO Heredia asked if he could search it. § 87(2)(b) said, "Yes, you may search it." PO Heredia searched the bag and found nothing. PO Kuehn could not recall what was inside the bag.

At no point did § 87(2)(b) interfere with the officers' duties. When asked specifically if § 87(2)(b) was ever a threat to his safety, PO Kuehn stated, "I don't believe so. It was just the bulge. I mean, that was just, that's the only reason why we frisked him." PO Kuehn stated that it is possible that there were other officers nearby but he could not recall.

NYPD Documents

SPRINT Report #T12501

The SPRINT report indicated that on July 11, 2006 at 8:40 PM, Housing Bike #3 conducted a warrant check on § 87(2)(b) at § 87(2)(b) in Manhattan (encl. 5A). The warrant check was negative.

Roll Call

The PSA 5 roll call from July 11, 2006 indicated that PO Heredia was assigned to Impact Bike #1, PO Hernandez was assigned to Impact Bike #2, and PO Kuehn was assigned to Impact Bike #3 (encl. 5B).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

§ 87(2)(b) has filed two other complaints with the CCRB § 87(2)(g)

Police Officer CCRB History

PO Heredia has been employed with the NYPD for one year. There are not any substantiated allegations on his CCRB record (encl. 2A).

Conclusions and Recommendations

Identification of Subject Officer

§ 87(2)(b) identified PO Kuehn by name and tax identification number from the summons. § 87(2)(b)'s description of PO1, the subject officer, as a male with a brown complexion and a heavy build, 5'8", in his late 20s closely matched PO Heredia. In addition, § 87(2)(b)'s description of PO2, the witness officer, as a white or Hispanic male with a slim build, 5'5", and in his mid-20s closely matched PO Kuehn. Finally, both officers acknowledged their roles in the incident.

Undisputed Facts

PO Kuehn and PO Heredia stopped § 87(2)(b) in front of § 87(2)(b) in Manhattan for riding his bicycle on a sidewalk within the § 87(2)(b) Housing Development. PO Heredia frisked § 87(2)(b) and searched his backpack after receiving consent from § 87(2)(b). PO Kuehn issued § 87(2)(b) one summons for § 87(2)(a) 160.50.

Disputed Facts

§ 87(2)(g)

Credibility

§ 87(2)(g)

§ 87(2)(g) [REDACTED]

PO Heredia

§ 87(2)(g) [REDACTED]

[REDACTED]

PO Kuehn

§ 87(2)(g) [REDACTED]

Allegations Not Pleaded

§ 87(2)(g) [REDACTED]

Allegation A: Abuse of Authority: PO Christopher Heredia frisked § 87(2)(b)

All parties agree that PO Heredia frisked § 87(2)(b). Both officers stated that they observed an unidentifiable bulge protruding from one of § 87(2)(b)'s front pants pockets when he got off his bicycle. PO Heredia stated that, after a frisk of the bulge, he determined it to be a cell phone. § 87(2)(b) stated that he emptied out his pockets entirely prior to the frisk. § 87(2)(g)

Barry Kamins' *New York Search and Seizure* explains that the legal justification for a frisk in this situation is based on "the view that the police may protect themselves during a lawful inquiry by patting down a bulge on the individual to whom they are directing their questions (encl. 1B)." However, Kamins makes it clear that the observation of a pocket bulge alone is not enough to justify a frisk. In a case where a pocket bulge is not identifiable, "a frisk will be permitted... if a police officer is presented with either of the following circumstances: (1) the defendant fits a description of a person with a gun or a person who has committed a violent crime; or (2) the totality of the circumstances places the officers in personal danger (encl. 1C)." § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Kamins explains that "the police have authority, in some cases, to frisk a defendant who is charged with a violation and who is uncooperative while the officer attempts to process him (encl. 1D)." § 87(2)(g)

. Therefore, it is recommended that Allegation A be exonerated.

Allegation B: Abuse of Authority: PO Christopher Heredia searched § 87(2)(b)'s backpack.

All parties agree that PO Heredia searched § 87(2)(b)'s backpack after the frisk. PO Kuehn and § 87(2)(b) stated that PO Heredia asked for and received § 87(2)(b)'s consent to search the bag. PO Heredia stated that § 87(2)(b) offered to allow PO Heredia to search his bag without any type of request or provocation. § 87(2)(g)

New York Search and Seizure explains that "if valid consent is obtained, then there is no requirement for probable cause" for a search (encl. 1E). However, an officer may not request to search an individual's belongings under any and all circumstances. Kamins explicitly states, "A request for a consent to search may not be made unless there is a founded suspicion of criminal activity (encl. 1F)." § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

. According to Kamins, “a consent to a search is voluntary ‘when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice (encl. 1E).’” § 87(2)(g)

, it is recommended that Allegation B be exonerated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: